

Present:
Mr. Justice S M Kuddus Zaman
CIVIL REVISION NO.466 of 2024.

Shamsul Islam

....**Petitioner**

-Versus-

Lima Begum

...**opposite party**

Mr. Md. Moniruzzaman, Advocate

...**For the petitioner**

Mr. Md. Jahangir Hossain, Advocate

..**For the opposite party**

Heard & Judgment on: 20.08.2024

This Rule was issued calling upon the opposite party to show cause as to why the impugned order dated 28.01.2024 passed by the learned District Judge, Sylhet in Family Appeal No.07 of 2024 staying operation of the judgment and decree dated 18.01.2024 and 24.01.2024 passed by the learned Judge, Family Court, Sylhet in Family Suit No.1029 of 2023 should not be set aside and/or pass such other or further order or orders as to this Court may seem fit and proper.

Facts in short are that the opposite party as plaintiff instituted Family Suit No.1029 of 2023 for a decree for divorce and dower and maintenance for herself and her two minor daughters namely Samiha Islam and Suhaba Islam.

Defendant No.1 entered appearance in above suit and contested the same by a filing written statement. At trial plaintiff gave evidence as

P.W.1 and the documents of the plaintiffs were marked as Exhibit Nos.1-2 series. Defendant himself gave evidence as D.W.1 and document produced by the defendant were marked as Exhibit No.Ka-Cha series.

On consideration of facts and circumstances of the case and evidence on record the learned Judge of the Family Court decreed the suit in part for Tk.5,00,000/- as unpaid dower and maintenance for her iddat period at the rate of Tk.3000/-.

Instead of granting maintenance for her two minor girls the learned Judge directed the plaintiff to handover the custody of above two minor girls to the defendant.

Being aggrieved by above judgment and decree of the Family Court the plaintiffs preferred Family Appeal No.07 of 2024 to the District Judge, Sylhet who admitted above appeal and stayed the operation of impugned judgment and decree of the Family Court.

Being aggrieved by and dissatisfied with above order of admission of appeal and staying the operation of the impugned judgment and order the respondent as petitioner moved to this court and obtained this rule.

Mr. Md. Moniruzzaman learned Advocate for the petitioner submits that the petitioner respondent has

already deposited the decretal money in the court below. As such, the plaintiff did not have any cause to prefer above appeal. The learned District Judge failed to appreciate above materials on record and most illegally admitted above appeal and stayed the operation of the impugned judgment and decree of the trial court which was not tenable in law.

Mr. Md. Jahangir Hossain learned Advocate for the opposite party submits that undisputedly the defendant is a citizen of the United Kingdom who lives and works in the UK but the learned Judge of the Family Court granted maintenance to the plaintiff at the rate of Tk.3000/- per month which is shockingly low and unacceptable. The learned Judge of the Family Court has most illegally directed the plaintiff to handover the custody of her two minor girls to the defendant which is not tenable in law. On consideration of above materials on record the learned District Judge has rightly admitted the appeal and stayed the operation of the impugned judgment and decree of the trial court which calls for no interference.

I have considered the submissions of the learned Advocates for respective parties and carefully examined all materials on record.

As mentioned above opposite party as plaintiff instituted above Family suit for recovery of her dower and maintenance for herself and for her two minor girls.

This was not a suit for hizanat or custody of two minor girls of the petitioner. The opposite party as plaintiff did not file a suit for custody of above two minor girls. The learned judge of the Family Court could grant or refuse maintenance to above girls but the learned Judge has directed the opposite party to handover the custody of her two minor girls to the defendant. Above direction of the family court is beyond any pleadings or evidence. In a suit for recovery of dowry and maintenance passing such an order as to custody of minor girls is unprecedented and without any lawful basis. As such the plaintiff had reasonable grievance against above part of the impugned judgment and decree of the Family Court as well. The learned District Judge rightly admitted above appeal and stayed the operation of the impugned judgment and decree which calls for no interference.

In above view of the materials on record I am unable to find substance in this petition under section 115 of the Code of Civil Procedure and the rule issued in this connection is liable to be discharged.

In the result, the Rule is discharged without any order as to costs.

The District Judge is directed to proceed with the disposal of Family Appeal No.07 of 2024 expeditiously preferably within a period of 03 (three) months from the date of receipt of this order in accordance with law.

The ad-interim order passed at the time of issuance of the rule is hereby vacated.

Let the lower courts' records along with a copy of this judgment be transmitted down at once.